



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 15 1997

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10827
(SECOND REVISION)

1. Shannon Packaging Company, Covina, California, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to manufacture, mark, and sell the packaging described in paragraph 7 below for use in the transportation in commerce of the waste hazardous materials described in paragraph 3 below, subject to the requirements specified herein. This exemption authorizes the manufacture, marking, and sale of a quad-wall fiberboard box with a fitted barrier liner for use as the outer packaging for lab pack applications. This exemption provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on Shannon Packaging Company's application dated January 7 and 8, 1997 submitted in accordance with 49 CFR 107.109.

3. HAZARDOUS MATERIALS (Descriptor and class). Waste hazardous materials, classed as Class or Division 3, 4.1, 4.2, 4.3, 5.1, 6.1, 8, or 9.

4. PROPER SHIPPING NAME (49 CFR 172.101). The specific chemical name or generic commodity description, as appropriate; preceded, when appropriate, by the word "Waste."

5. REGULATION AFFECTED. 49 CFR 173.12(b).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and Cargo vessel.

7. SAFETY CONTROL MEASURES.

a. Packaging prescribed is a non-DOT specification fiberboard box of quad-wall corrugated fiberboard construction, with a maximum size (interior dimensions) of 21.4 in x 21.4 in x 35.8 in. The box, fabricated according to the description in the application dated May 5, 1992, is fitted with a lining consisting of a composite laminate of polyethylene film, aluminum foil, and DuPont Tyvek.

b. Inner packaging may be glass packaging not exceeding 41 (1 gal), or metal or plastic packaging not exceeding 201 (5.3 gal). Gross weight of the completed package may not exceed 205 kg (452 lb.).

c. Inner packaging containing liquid must be surrounded by a chemically compatible absorbent material in sufficient quantity to absorb the total liquid contents.

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d. The outer packaging may contain only one class of hazardous material.

e. Testing. The box, filled to 95% of capacity with a solid material, must be satisfactorily tested in accordance with 49 CFR 178.603 and 178.606 at the Packing Group I level. In addition, the packaging must be capable of withstanding the vibration standard described in 49 CFR 178.608.

f. Materials meeting the definition of Division 6.1, Packing Group I, or Division 4.2, Packing Group I, and bromine pentafluoride; bromine trifluoride; chloric acid; and oleum (fuming sulfuric acid) may not be shipped under the terms of this exemption.

8. SPECIAL PROVISIONS.

a. Offerors for transportation of hazardous materials specified in this exemption may use the packaging described in this exemption for the transportation of such hazardous materials so long as no modifications or changes are made to the packages, all terms of this exemption are complied with, and a copy of the current exemption is maintained at each facility from which such offering occurs.

b. Except as provided in 49 CFR 173.12, shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 100-180.

c. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated for a specific manufacturing facility.

d. A copy of this exemption, in its current status, must be maintained at each manufacturing facility at which this packaging is manufactured and must be made available to a DOT representative upon request.

e. Each box must be plainly and durably marked "DOT-E 10827" on a contrasting background.

f. A copy of this exemption must be carried aboard each cargo vessel used to transport the packages under the terms of this exemption.

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9. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o all terms and conditions prescribed in the exemption and Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.602 et seq., when applicable.

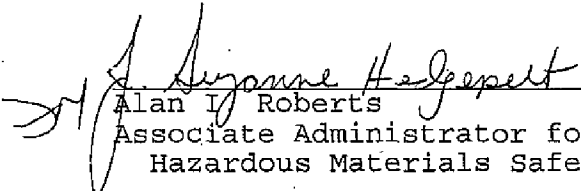
No person may use or apply this exemption, including display of its number, when the exemptions has expired or is otherwise no longer in effect.

10. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

11. EXPIRATION DATE. December 31, 1998.

Issued at Washington, D.C.:

JAN 15 1997


Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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